

קפה בַּחוּץ

Coffee Out — Marit Ayin & the Non-Kosher Café

Black coffee at a highway rest stop, a latte at a non-kosher café, a cup at a neighbor's house: where kashrut ends and marit ayin, chashad, and simple neighborliness begin.

7 QUESTIONS · 14 SOURCES · POSKIM 1488-1812

5.1 May one purchase hot coffee at a non-kosher establishment while traveling (at a rest stop, gas station, airport, etc.)?

THE BOTTOM LINE למעשה

Yes — while traveling, one may purchase unflavored regular or decaf coffee (and a latte with cholov stam if one does not keep cholov Yisroel) at non-kosher establishments, relying on stam keilim since a traveler is considered to be in a b'dieved situation. Flavored coffees, Frappuccinos, and specialty drinks require separate review.

Rabbi Moshe Heinemann (STAR-K) marshals the Noda BiYehudah (YD 36, via Yad Ephraim on SA YD 122:6) who ruled that "practically speaking, when someone is traveling and is in a place where no kosher utensils are available, he is considered to be in a b'dieved situation" — and may use the gentile-owned mugs based on kli sheni + stam keilim. Rabbi Heinemann applies this same logic to the modern case: (1) a traveler is b'dieved; (2) treif dishes are not washed with coffee equipment every single day (avoiding the Shach's concern that the mugs were used daily); therefore stam keilim applies and the coffee is permitted. Once home, this leniency no longer applies.

STAR-K Kashrus Kurrents Spring 2019 (R. Baruch Beyer / R. Heinemann). The key 10 Hebrew words from Noda BiYehudah: ולהלכה למעשה בדרך באושפיזא שאין שם כלים אחרים מיחשב דיעבד. Cf. Noda BiYehudah YD 36 already in DB.

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Shulchan Aruch YD 122:6 (stam keilim)

Rabbi Yosef Karo (Maran / Beit Yosef / Shulchan Aruch), 1488–1575 · Shulchan Aruch, Yoreh Deah 122:6 — *stam keilim einan bnei yoman*

Ordinary [non-Jewish] utensils are assumed not to have been used [for non-kosher food] within the past day (*stam keilim einan bnei yoman*) — if one mistakenly cooked in a non-Jew's pot, the food is permitted, since we assume the pot was not used for non-kosher within 24 hours, rendering any absorbed taste *pagum* (off-tasting) and halachically inert.

סתם כלים אינן בני יומן — if one mistakenly cooked in a non-Jew's pot, the food is permitted, since we assume the pot was not used for non-kosher within 24 hours.

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Noda BiYehudah YD 36

Rabbi Yechezkel Landau (Noda BiYehudah), 1713–1793 · Responsa Noda BiYehudah, Yoreh Deah, siman 36

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Yad Ephraim on SA YD 122:6

Rabbi Ephraim Zalman Margolis (Beit Ephraim / Mateh Ephraim), 1762–1828 · Yad Ephraim (Rabbi Ephraim Zalman Margolis, d.1828), gloss on Shulchan Aruch Yoreh Deah 122:6

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5.2 Does unflavored roasted coffee (whole bean or ground) require a hechsher?

THE BOTTOM LINE למעשה

No — unflavored roasted coffee beans, whole and ground, are considered kosher without a hechsher (kosher certification). The kashrus concern with coffee from non-kosher vendors is not the coffee itself but the keilim (equipment) used to make it.

Unflavored roasted coffee has no ingredients that raise kashrus concerns. The issues arise from: (1) shared washing of coffee equipment with treif dishes; (2) flavored coffees which contain additional ingredients requiring review; (3) decaffeinated coffee which may involve chemical processing that requires supervision. Regular unflavored coffee, however, needs no certification.

STAR-K Kashrus Kurrents Spring 2019. This is the baseline rule underpinning the entire travel discussion — because the coffee itself is fine, the only question is the equipment.

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STAR-K Kashrus Kurrents Spring 2019 — Coffee on the Road ↗

5.3 May one purchase hot coffee at a non-kosher establishment (e.g. Starbucks) under normal circumstances?

THE BOTTOM LINE למעשה

STAR-K position: No — under normal (lechatchila) circumstances, one should only buy hot coffee from vendors known not to sell treif, or whose cleaning procedures do not affect the kashrus of the coffee equipment.

The problem is not the coffee itself (unflavored roasted coffee requires no hechsher) but the keilim (utensils). At establishments that sell treif food (bacon sandwiches, pepperoni items, etc.), the brew basket and coffee equipment may be washed together with treif dishes. If the wash water is yad soledes and no soap enters before the treif equipment, the brew basket becomes treif and the coffee made in it is treif. The heter of stam keilim (SA YD 122:6) — that non-Jewish utensils are assumed not to have been used within 24 hours — applies only in b'dieved situations, not lechatchila.

STAR-K Kashrus Kurrents Spring 2019 (R. Baruch Beyer). Based on Rabbi Moshe Heinemann shlit"a. Cf. Noda BiYehudah YD 36 (already in DB) on the parallel 18th-century Prague coffeehouse case.



Shulchan Aruch YD 122:6 (stam keilim)

Rabbi Yosef Karo (Maran / Beit Yosef / Shulchan Aruch), 1488–1575 · Shulchan Aruch, Yoreh Deah 122:6 — stam keilim einan bnei yoman

Text brought above at §5.1 source N.



Noda BiYehudah YD 36

Rabbi Yechezkel Landau (Noda BiYehudah), 1713–1793 · Responsa Noda BiYehudah, Yoreh Deah, siman 36



STAR-K Kashrus Kurrents Spring 2019 — Coffee on the Road ↗

5.4 Is there a marit ayin concern for buying coffee at a non-kosher establishment like McDonald's while traveling?

THE BOTTOM LINE למעשה

Rav Schachter: No marit ayin issue. Rav Belsky: Permitted but do not sit at the restaurant tables — sit outside or at a neutral location. Rav Schachter adds: even those normally stringent should not hesitate to buy coffee if tired while driving, as driving while tired violates the biblical prohibition of v'nishmartem me'od l'nafshoteichem.

Rav Hershel Schachter rules there is no marit ayin problem purchasing coffee at McDonald's or similar non-kosher outlets when traveling. Rav Yisroel Belsky agrees it is permitted but rules one should not sit at the restaurant tables (which might cause onlookers to think one ordered a full non-kosher meal) — instead sit outside or in one's car. Rav Schachter's additional ruling: since driving while fatigued is a biblical violation of "v'nishmartem me'od l'nafshoteichem" (you shall

guard yourselves exceedingly — Devarim 4:15), this danger outweighs any possible marit ayin concern, so even someone stringent in such matters should not hesitate.

OU Torah Dalet Amot of Halacha (R. Enkin, 2025), citing Hirhurim blog. Cross-reference STAR-K Kashrus Kurrents (Heinemann) entry which addresses the same scenario with a more detailed halachic framework.

OU Torah Dalet Amot of Halacha — Coffee (Enkin, 2025) ↗

Hirhurim blog — Coffee on the Road (R. Schachter/Belsky) ↗

5.5 Is there a concern of maris ayin when purchasing coffee at a non-kosher establishment such as McDonald's or a highway rest stop?

THE BOTTOM LINE למעשה

Rabbi Schachter ruled that there is no concern of maris ayin for purchasing coffee at McDonald's or a similar rest stop.

Since it is publicly known and widely understood that coffee from non-kosher establishments is permissible (given the bishul akum leniency and the fact that the coffee itself is kosher), an observer would not mistakenly conclude that the purchaser is eating non-kosher food. The maris ayin concern does not apply where the permitted nature of the act is commonly known.

Source: Daf HaKashrus Vol.1 No.6 (2008), p.86. Pesak of Rabbi Hershel Schachter.

Daf HaKashrus Vol.1 No.6 (2008), p.86 ↗

Primary source: pesak of Rabbi Schachter on maris ayin

5.6 May one drink coffee socially at a non-Jew's home? What about at a non-Jewish coffee shop or store?

THE BOTTOM LINE למעשה

One may not drink coffee socially at a non-Jew's home (Rabbi Belsky, citing Chachmas Adam). However, there is no issue of drinking coffee in a store. Rabbi Schachter added that it is preferable to wait until one returns to their car before drinking the coffee.

Rabbi Schachter understood that the Rambam's leniency permitting certain drinks in non-Jewish settings was specifically regarding cider, which is not a common drink. Coffee today, however, is as common as beer, and therefore the social-

drinking concern applies in a home setting. A commercial store setting is treated differently from a social visit to a private home.

Source: Daf HaKashrus Vol.1 No.6 (2008), p.86. Two opinions cited: Rabbi Yisroel Belsky (OU posek) and Rabbi Hershel Schachter.

Chochmas Adam 66:14 ↗

Rabbi Avraham Danzig (Chayei Adam / Chochmas Adam), 1748–1820 · Chochmas Adam, klal 66, se'if 14

Cited by Rabbi Belsky as basis for prohibition at a non-Jew's home

Rules that beer may not be drunk socially at a non-Jew's home because of the decree against socializing (chatnut), then adds: "and likewise coffee and chocolate are permitted to drink in the house of a non-Jew (Pri Chadash)" — but immediately warns that "in our many sins, in these times many failures come from this, especially drinking coffee with milk which is an outright prohibition... therefore anyone with the scent of Torah should distance himself from entering their homes to drink any beverage whatsoever."

Daf HaKashrus Vol.1 No.6 (2008), p.86 ↗

Primary source: pesak of Rabbi Belsky and Rabbi Schachter

5.7 Is coffee permitted when served from carafes or utensils that may have been washed together with non-kosher dishes?

THE BOTTOM LINE

While halachic justifications exist to permit such coffee, Rav Belsky held that it is not within the spirit of the law to rely on these heterim. The OU as a hashgachah does not recommend products that are merely "not so bad." Rav Belsky's personal practice on airplanes was to avoid coffee poured from carafes and instead ask the flight attendant to fill his cup directly from the coffee machine in the galley, which is not washed with non-kosher dishes.

Even where technical heterim exist — such as bitul (nullification), or the argument that residue from non-kosher dishes is pagum (spoiled/unpalatable) — Rav Belsky maintained that a hashgachah's role is to set a higher standard than the bare minimum the halacha might technically permit. The carafe concern is that it may be washed with non-kosher dishes in the airplane galley, potentially imparting non-kosher ta'am (flavor). The machine itself, by contrast, is not washed this way and is therefore unproblematic.

Source: Daf HaKashrus Vol.1 No.6 (2008), p.359. This reflects Rav Belsky's broader hashkafic approach to psak as an agency posek — not just asking what is technically permitted but what reflects the spirit of halachic observance. Practically relevant for airplane travel and hotel coffee service.

Daf HaKashrus Vol.1 No.6 (2008), p.359 ↗

Primary source for Rav Belsky's ruling and personal practice on airplane coffee



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